

HEADNOTE

“1. To prevent a mere ‘fishing expedition’, an order for inspection and/or preservation of evidence must be based on plausible grounds that the patent in question is subject to infringement (in line with UPC_CoA_239/2025, Order of 26 May 2025, para. 12 – Centripetal v Palo Alto).

2. Where possible alternative solutions exist, it is precisely one – if not the primary – purpose of the proceedings for the preservation of evidence to investigate further, on the basis of the suspicion of a possible patent infringement grounded in specific connecting facts, and to secure evidence as to whether, and if so to what extent, the embodiment under investigation makes use of the technical teaching protected by the patent in question, and not, in fact, of a possible alternative solution. Possible non-infringing alternative solutions therefore preclude an order for inspection and/or preservation of evidence only if they render the Applicant’s submission regarding a possible infringement of the patent in question no longer plausible.

3. If a protective letter filed by the respondent does not contain any arguments demonstrating non-infringement, this may reinforce the suspicion of a possible infringement of the patent in question.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 4 285 308

SECURELY REGISTERING A
SEQUENCE OF TRANSACTIONS

KEYWORDS

Inspection and evidence preservation

examination procedure

sufficient likelihood of infringement

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to securely registering a sequence of transactions. According to the headnotes of the decision, orders for inspection and preservation of evidence require plausible grounds of patent infringement. Such orders must not serve as mere fishing expeditions without factual basis. However, where alternative non-infringing solutions might exist, evidence preservation proceedings can still proceed. The purpose is to investigate whether the embodiment actually uses the patent's protected technical teaching. Alternative solutions only block such orders if they eliminate any plausible infringement claim. Additionally, when a respondent's protective letter lacks non-infringement arguments, this may strengthen suspicion of possible infringement.